CONSTITUTIONAL LAW — ARTICLE 19

Restrictions on the freedoms · Property · Profession & State monopoly · Speech, assembly, association & movement case law

Compiled from the lecture transcript · facts checked against current sources where the lecture touched on current events

Blue	Green	Orange	Purple	Red	Grey italics
Core law / provisions	Cases	Exam angle / reading	Questions asked in class — answered	Accuracy check / correction / update	Professor's informal asides

1 Article 19 — the big picture

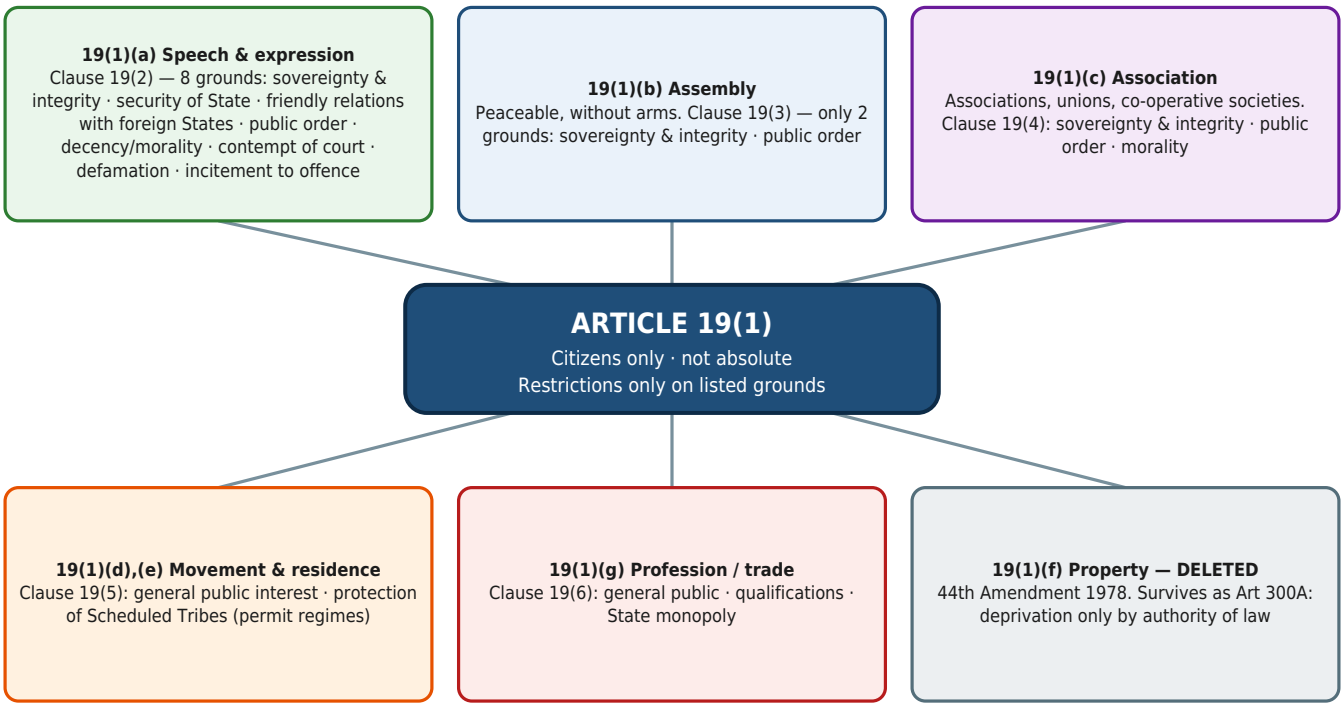
Core points

- Art 19(1) gives six freedoms to **citizens only**: speech and expression; assembling peaceably without arms; forming associations, unions or co-operative societies; moving freely throughout India; residing and settling in any part of India; and practising any profession or carrying on any occupation, trade or business.
- **None is absolute.** Restrictions can be imposed **only on the grounds listed** in clauses (2)–(6). The government cannot add a fresh ground at its whims; that needs a **constitutional amendment** (e.g. the First Amendment 1951 added public order, friendly relations with foreign States and incitement to an offence to Art 19(2); the Sixteenth Amendment 1963 added 'sovereignty and integrity of India').
- The old freedom to hold property, 19(1)(f), has gone — but that does **not** mean there is no right to property (see Part 3).

Professor's asides

"Given only to citizens ... they are not absolute rights. There are restrictions, but the restrictions can be imposed only on these grounds. No fresh ground can be added by the government at its whims and fancies."

Mind-map of Article 19



Grounds of restriction at a glance

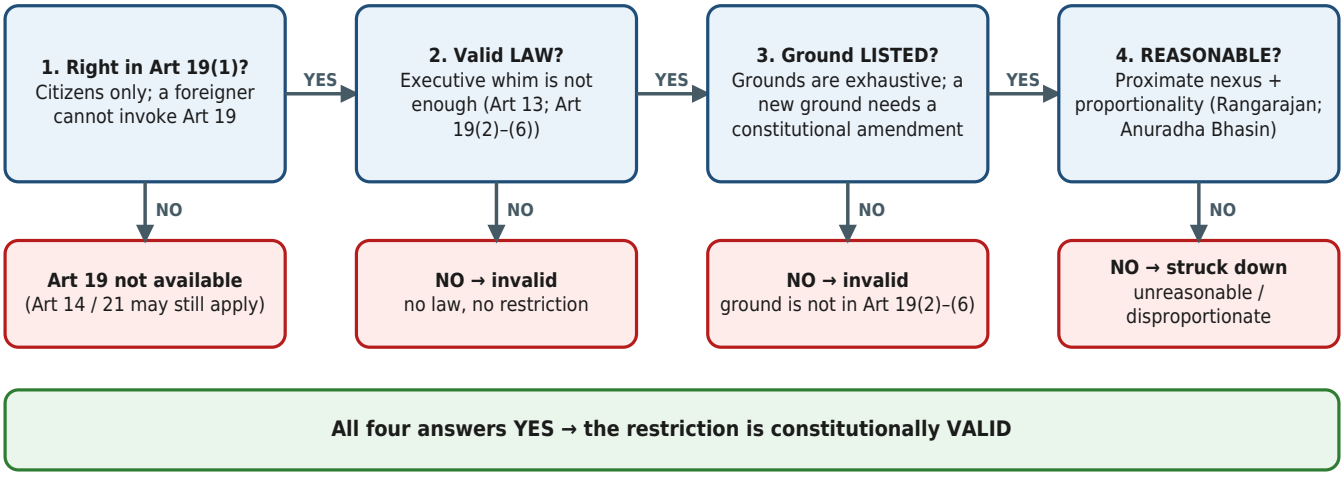
Freedom — Art 19(1)	Clause	Permitted grounds	Remember
(a) Speech and expression	19(2)	sovereignty and integrity of India · security of the State · friendly relations with foreign States · public order · decency or morality · contempt of court · defamation · incitement to an offence	**8 grounds**

Freedom — Art 19(1)	Clause	Permitted grounds	Remember
(b) Assemble peaceably and without arms	19(3)	sovereignty and integrity of India · public order	**2 grounds** (the lecture said 'three' but named two)
(c) Associations, unions, co-operative societies	19(4)	sovereignty and integrity of India · public order · morality	**3 grounds**; no society may be formed to preach immorality
(d) Move freely throughout India (e) Reside and settle anywhere in India	19(5)	interests of the general public · protection of the interests of any Scheduled Tribe	**2 grounds**; permit regimes in tribal belts
(f) Property	—	Deleted by the 44th Amendment (1978)	Now Art 300A
(g) Profession, occupation, trade, business	19(6)	interests of the general public · (i) professional or technical qualifications · (ii) State monopoly (State or State-owned corporation, wholly or partly excluding citizens)	**3 heads**; (i) and (ii) came later by amendment

Accuracy check

- **Art 19(3) has two grounds** — sovereignty and integrity of India, and public order. The lecture said 'only three grounds' but listed two; the text of the clause has two.
- 'Co-operative societies' in 19(1)(c) was inserted by the 97th Amendment (2011). In *Union of India v. Rajendra N. Shah* (2021) the Supreme Court struck down only the separate Part IXB of that amendment (for lack of State ratification), leaving the Art 19(1)(c) insertion untouched.
- Heads (i) qualifications and (ii) State trading in Art 19(6) came by the First Amendment (1951); the State-monopoly head was widened by the Fourth Amendment (1955) — this is the 'later point of time' the lecture mentioned.

Test of validity of a restriction (flowchart)



2 Freedom of movement and residence — 19(1)(d), (e)

Grounds under 19(5)

- **(1) Interests of the general public** and **(2) protection of the interests of any Scheduled Tribe**. Only these two.
- Illustration: in some tribal belts (the lecture named Arunachal Pradesh, Mizoram, 'probably Nagaland, Manipur') a **special permit** is needed to enter; it is generally granted. You also **cannot settle** there or buy property.
- Purpose (the professor's reasoning): protect tribal communities from being exploited and divested of their land.

Professor's asides

"The reason may be that some tribal people are not very mature, not very learned, not very educated — they are innocent people like me." (a joke: 'you may fool them like Garima keeps fooling everybody').

He said that for a tribal person, 'a thousand rupees or two-three bottles of liquor' could be enough to lose property worth crores — so such property transfers are barred.

He also noted a gender inequality: if a woman marries outside her tribe, 'she loses the property rights there' — which he called an exception to Art 14 that 'can be a group in itself'.

On 'general public': Delhi is overburdened — his son's trip from the Supreme Court takes 1.5–2 hours; the professor has stayed in Nagpur ~10 years despite what he called discrimination under the previous regime, because he 'cannot survive in Delhi' rush' (he joked he would otherwise have opened a small factory in Nagpur).

Accuracy check

- The permit system is the **Inner Line Permit** under the Bengal Eastern Frontier Regulation 1873, applicable (as per the examples used) in Arunachal Pradesh, Mizoram, Nagaland and — since December 2019 — Manipur. Land protection in those States also rests on Art 371A (Nagaland) and 371G (Mizoram).
- The loss of a woman's property rights on marrying outside the tribe comes from **customary law**, not from Art 19(5); whether it is consistent with equality is a contested question, so treat it as a debated point rather than a settled exception.

Cases mentioned

Case	What it held / why it matters
Kharak Singh v. State of UP (1962)	Flagged by the professor as a very important case (surveillance / personal liberty — to be studied under Art 21).
Satwant Singh Sawhney v. D. Ramarathnam (1967)	The government granted or refused passports at will. The Court held the right to travel abroad is part of personal liberty (Art 21) and cannot be curtailed without a **law**. Parliament then enacted the **Passport Act 1967**.
Maneka Gandhi v. Union of India (1978)	Challenge to impounding of a passport under the Passport Act. To be studied properly under Art 21: any procedure depriving liberty must be **just, fair and reasonable**; Arts 14, 19 and 21 are read together.
Pradeep Jain v. Union of India (1984)	(Discussed earlier in reservation.) A **domicile / residence requirement** in admissions is permissible within limits — State quotas allowed in moderation, discouraged at higher (PG) levels.

Accuracy check

- Passport Act 1967 was enacted **after** *Satwant Singh*, as the lecture said. In *Maneka Gandhi* the Court did **not** strike the Act down: it upheld s.10(3)(c) but required fair procedure. The lecture's remark that the Act would not have been held unconstitutional for another petitioner is the professor's opinion, not the holding. Her passport was impounded in 1977 (by the Janata government).
- A 'Kaushalya …' case on movement and residence is mentioned at the end of the lecture; the name is unclear in the transcript, so verify it before citing.

3 Right to property after 19(1)(f)

Core points

- 19(1)(f) was removed by the **44th Amendment (1978)**. The right survives as **Art 300A**: no person shall be deprived of property except by **authority of law**.
- The lecture's three conditions for lawful deprivation: **(1) a law, (2) a public purpose, (3) compensation**.

Accuracy check — text vs case law

- The **text of Art 300A requires only authority of law**. In *K.T. Plantation v. State of Karnataka* (2011) the Supreme Court treated 'public purpose' as a condition of the State's power to deprive property, but held that Art 300A (unlike the old Art 31(2)) does not itself guarantee compensation — whether it is due depends on the law concerned.
- The 'compensation enhanced four times' the professor mentioned matches the **RFCTLARR Act 2013** (passed shortly before the 2014 elections): compensation up to **four times** market value in rural areas and twice in urban areas.

Professor's aside

"We the people of India have benefited because of the political rivalry of Congress and BJP … Congress, while being kicked out of office, was glad to enhance the compensation four times, and that is good for people."

4 Freedom of profession, occupation, trade or business — 19(1)(g)

Grounds under 19(6)

- **(1) Interests of the general public** — the most important restriction ('only one word: general public').
- **(2) Professional or technical qualifications** and **(3) State monopoly** — added later, and these too must be in public interest.
- You can **choose** to become a doctor or a lawyer — nobody can stop you from learning — but you must go through the prescribed process and qualify.

Examples of prescribed qualifications

Profession	Rule discussed	Source (for reference)
Doctor / surgery	Must hold a recognised medical qualification — one cannot just 'start surgery'	National Medical Commission Act 2019 (earlier IMC Act 1956)
University professor	Master's degree, NET, PhD etc.	UGC regulations
Advocate	Law graduate enrolled as an advocate; only advocates may practise before the Supreme Court and High Courts. Retired IRS officers, however expert in tax, cannot appear as counsel; a person may appear in his **own** case ('at your own risk')	Advocates Act 1961, ss.29 and 33
CA, CS, ICWA (now CMA)	Special qualifications for each profession	CA Act 1949; Company Secretaries Act 1980; Cost and Works Accountants Act 1959

Professor's asides

Classroom examples with students' names: 'Garima cannot just go and start surgery on somebody'; 'Jahnvi cannot announce that from tomorrow she is professor of this university'; and, to the class, 'you will become advocates in another three years'.

On IRS officers: they know direct and indirect tax 'very nicely, better than us', yet practice before the Supreme Court and High Courts is reserved to advocates.

Upper age limit for law admission — the professor's view and where the case stands

Exam angle / current status

- **Lecture:** the Supreme Court's 'wrong decision' allows no upper age limit for advocacy / law education. It is an **interim stay, not a final decision**; CLAT's upper age (22 when he began teaching) has effectively gone. He argued boarding/residential institutions such as the NLUs should be treated differently.
- **Verified status:** the BCI's Legal Education Rules 2008 (Rule 28) prescribed upper age limits for admission; the Supreme Court **stayed** the BCI's decision in March 2017 and the petition (*Rishabh Duggal v. Bar Council of India*) is still pending. At a recent hearing (reported in September 2026) the bench headed by CJI Surya Kant asked the BCI to consider withdrawing the limit and questioned whether a power to fix *minimum qualifications* can be turned into an upper age limit.
- The BCI argued the limit exists because most five-year law courses are **residential** — the same point the professor made; Justice Bagchi doubted it (not all are residential, e.g. Calcutta University). BCI sought time to take instructions; the final decision is awaited.

Professor's asides

A 30-year-old student once joined a batch of 17-year-olds — 'their maturity, their sense is different'. In PG, a lady wanted special treatment ('I am not young like this girl; you can scold her, but not me').

'Any Tom and Jerry — a 55-year-old can give CLAT, pass, and live in your hostel — do you think that will be good?' He called the blanket permission a Supreme Court mistake; he had hoped to argue the case but said he 'could not plead' before the bench last week.

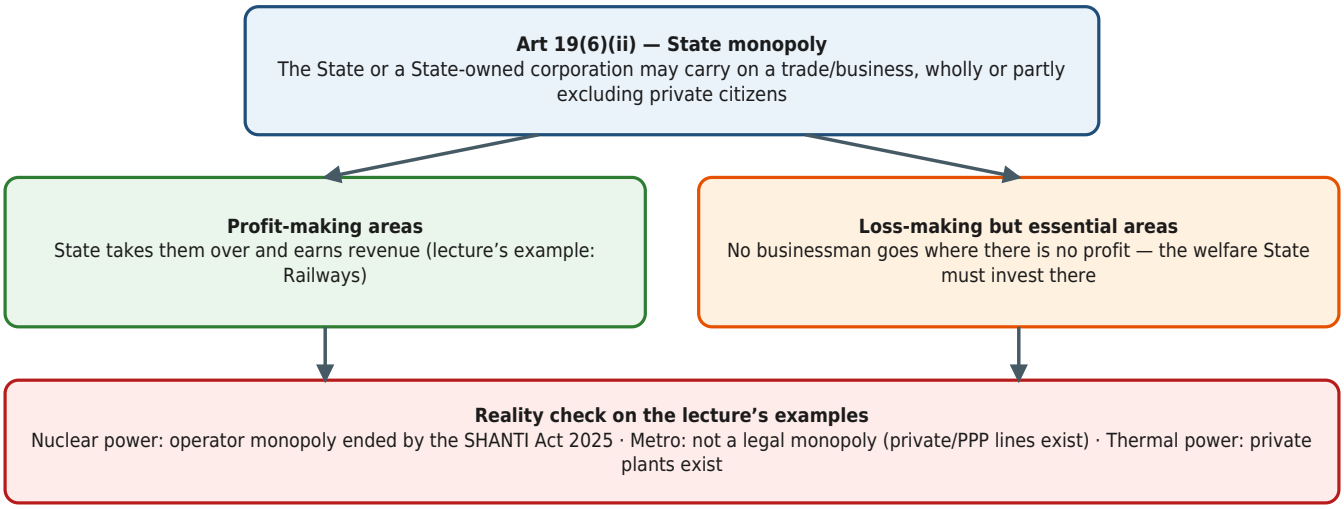
LLM class frustration: people with six–eight years of unsuccessful jobs enrol hoping to become teachers, but 'do not know Article 13, 14 or 16' — so comparing American and Indian public law is hard. With you ('children') the frustration is less; 'in PG it is the highest level'.

5 State monopoly — 19(6)(ii)

Core points

- The State may create a **monopoly in its own favour** in areas it considers important, because India is a **welfare State**.
- It works in two ways: (1) the State monopolises **profitable** sectors and (2) it invests where there is **no profit** — a businessman will go only where there is profit, so who will serve the rest?
- Examples given: Railways; Metro ('I think'); electricity generation — in particular nuclear power.

Two kinds of monopoly (flowchart)



Accuracy check

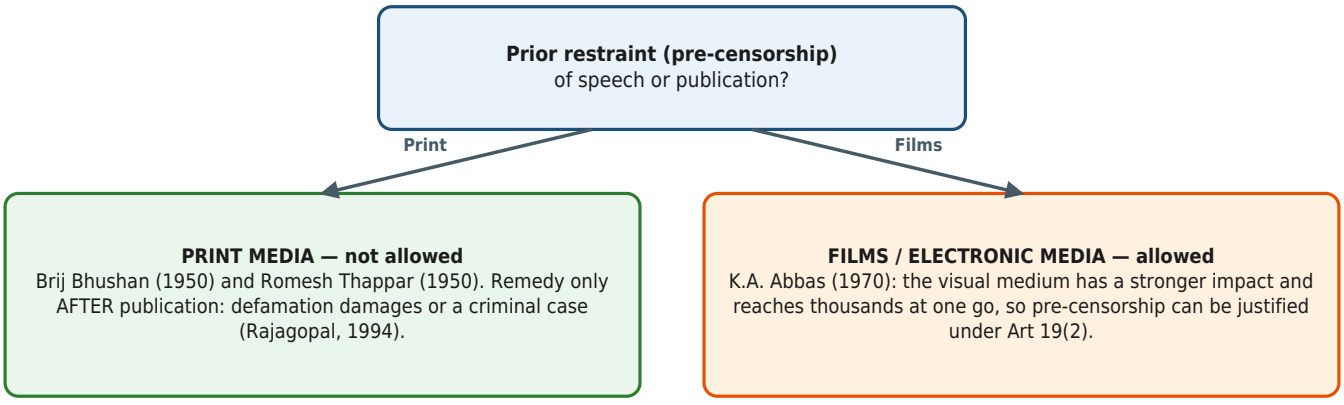
- **Nuclear:** the lecture said nuclear generation has not been given to any private company. That was true under the Atomic Energy Act 1962, but the **SHANTI Act 2025** (assented 20 Dec 2025) repealed that Act and the Civil Liability for Nuclear Damage Act 2010 and opened nuclear power generation to licensed private and foreign participation, while keeping sovereign control of sensitive activities and giving the AERB statutory status.
- **Metro:** not a legal monopoly — private/PPP metro operators exist (e.g. Hyderabad Metro, Mumbai Metro Line 1). **Thermal power** is not exclusively public either: generation is delicensed (Electricity Act 2003) and private thermal plants operate.
- **Railways** remain essentially a Union-run service.

Professor's asides

'Koyla, paani, hydro can be given to private parties — but I think nuclear is a very serious issue; it is the government's.' (Now overtaken by the SHANTI Act, see above.)

6 Freedom of speech and the press — case law under 19(1)(a)

Print vs. film / electronic media (flowchart)



Case	What it held / why it matters
Romesh Thappar v. State of Madras (1950)	Freedom of speech includes **circulation of publications**; press freedom is protected although 'press' is not written in Art 19(1)(a). A law on 'public safety' (not then a listed ground) was struck down — which led to 'public order' being added by the First Amendment.
Brij Bhushan v. State of Delhi (1950)	Pre-censorship of a newspaper is a **prior restraint** and unconstitutional — the constitutional limit on prior restraint.
K.A. Abbas v. Union of India (1970)	Pre-censorship of **films** upheld. Electronic/visual media treated differently from print because visual impact is greater and it reaches thousands at once. (Read the reasons.)
Sakal Papers v. Union of India (1962)	Circulation and content of newspapers cannot be **indirectly controlled through price-page restrictions**; the order was struck down.
Bennett Coleman v. Union of India (1972)	Newsprint control (limits on pages / new editions) burdened circulation and content; treated as a press restriction and struck down.
Indian Express Newspapers (Bombay) v. Union of India (1985)	Taxation affecting newspapers (duty on newsprint) must be tested in light of press freedom; taxes that threaten survival can be challenged.
Rangarajan v. P. Jagjivan Ram (1989)	**Anticipated hostile reaction** alone does not justify suppression; there must be a **proximate** (direct) connection with public order. (The transcript says 'approximate' — the word is 'proximate'.)
R. Rajagopal v. State of Tamil Nadu (1994) — the 'Auto Shankar' case	A convicted murderer wrote an autobiography in jail naming police and administrative officers. Held: privacy is part of Art 21, but there is **no prior restraint** on publication; matters of public record and the official conduct of public servants can be published. If something false or defamatory is published, the remedy is **afterwards** — a defamation suit for damages or a criminal case.
Secretary, Ministry of I&B v. Cricket Association of Bengal (1995)	The right to **communicate and receive information** is part of freedom of expression; **airwaves are public property** to be used for the public good (links to Art 39(b)); the State cannot claim an exclusive monopoly over broadcasting.
Tata Press v. MTNL (1995)	**Commercial speech** (advertising) is protected by Art 19(1)(a).
Union of India v. Association for Democratic Reforms (2002) and PUCL v. Union of India (2003)	Voters have a **right to know** candidates' criminal, financial and educational background; the Election Commission may demand affidavits. *PUCL* (2003) reaffirmed this and struck down the amendment that diluted it.
Shreya Singhal v. Union of India (2015)	s.66A of the IT Act struck down (vague, chills speech); mere discussion or advocacy is protected, incitement is not.
Devidas Ramachandra Tuljapurkar v. State of Maharashtra (2015)	Obscenity is judged by contemporary **community standards** (not the old Hicklin test). (Marked by the professor as likely exam material.)
Subramanian Swamy v. Union of India (2016)	**Criminal defamation** (IPC ss.499–500) held constitutional — reputation is part of Art 21 and defamation is a listed ground in 19(2). Now BNS s.356.
Anuradha Bhasin v. Union of India (2020)	**Compulsory reading.** Internet access/expression and business via the internet protected; indefinite shutdowns impermissible; restrictions must satisfy the **doctrine of proportionality**, and orders must be published and reviewable.
Kaushal Kishor v. State of UP (2023)	Constitution Bench: **no additional restrictions** beyond Art 19(2) can be placed on free speech; also dealt with the speech of public functionaries and whether the State is liable for it.

Directive Principles link — Art 39(b) and (c)

- **39(b):** the ownership and control of the material resources of the community are so distributed as best to subserve the common good.
- **39(c):** the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment.
- The professor's point: 'resources' are not only on or under the earth, but also above it — airwaves and frequencies belong to the people, and channels that earn crores through them must use them for the common benefit.

Professor's asides

He asked everyone to open the Constitution to find 39(b); when many could not, he teased 'you are contract-wale children' ('leaders do not find the leadership clause!').

'Satellites pull information from waves — waves are nobody's father's property; whose property are they? We, the People of India's.' He used cricket as an analogy: the broadcast signal is thrown up and caught elsewhere.

On the press cases: government never wants news to be published properly, so it controls through size, price, newsprint and tax — 'impose a tax so they cannot survive'. 'Things are very settled now; the government will not do nonsense on this ground.' Also: 'Who reads newspapers now? Everything is online' (even newspaper clipping storage is a problem).

On ADR: elections used to hide criminal records — 'where I committed dacoity, grabbed land, whose murder'. The Court said: 'This is our right to know about our representative. Who are you?' He asked the class to name the Mumbai 'don' now in Pakistan (answer: Dawood) and joked when a student said 'interest hai': 'so are you going to become an underworld don? Don't — life is risky.'

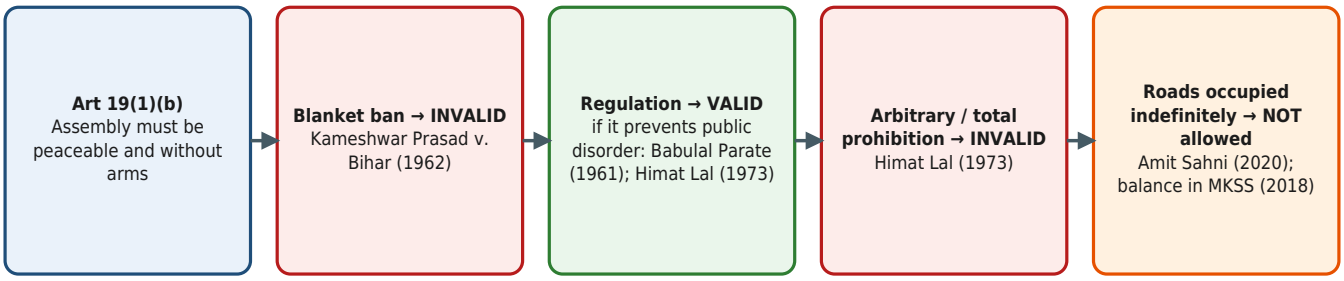
On Subramanian Swamy: 'otherwise people will say anything and pay money and go free.' (His gloss; the Court's reasons are Art 21 reputation and the 19(2) ground.) He also named Anuradha Bhasin as 'compulsory reading'.

He mentioned a pending controversy about a politician's change of name and whether the earlier history must be disclosed; he said no court has decided it. It is an unverified allegation, so it is left out of these notes — the legal point is the voter's right to know the candidate's background (ADR).

He said many of these press cases came 'in 1990'; Indian Express was decided in 1985 and Sakal Papers in 1962. He also drew political comparisons between past and present governments — personal opinion, not examinable, and not reproduced here.

7 Peaceful assembly — 19(1)(b), 19(3)

Can the State stop a protest? (flowchart)



Case	What it held / why it matters
Kameshwar Prasad v. State of Bihar (1962)	A **blanket ban** on demonstrations by government servants was invalid; violent or disorderly conduct may be regulated.
Babulal Parate v. State of Maharashtra (1961)	Restrictions imposed to **prevent public disorder** were upheld.
Himat Lal K. Shah v. Commissioner of Police (1973)	Public meetings can be **regulated**, but the State cannot exercise **arbitrary power to prohibit** them.
Ramlila Maidan Incident, In re (2012)	Suo motu case on the midnight police action of 4/5 June 2011 against Baba Ramdev's supporters. The right to assemble and protest peacefully is fundamental; the police action was arbitrary and an abuse of power, though not necessarily mala fide; the Court also faulted Ramdev for not dispersing the crowd. **Must read** (professor).
Mazdoor Kisan Shakti Sangathan v. Union of India (2018)	Balances the right to protest with residents' rights and public order (Jantar Mantar protests); a blanket ban was not accepted.
Amit Sahni v. Commissioner of Police (2020)	Shaheen Bagh: **public roads cannot be occupied indefinitely** for protest at the expense of other citizens.

Professor's asides

When you gather 5 lakh people 'you cannot guarantee all will be peaceful — anti-social elements may come'. Jantar Mantar holds perhaps 1,000 ('I'm not sure'). Inviting all of India 'itself should be considered an anarchist moment, not a peaceful assembly'. If you cannot speak well, make a good speaker the leader ('call Zoya') — 'why call lakhs?'

Yesterday's blocked road between Mandi House and Jantar Mantar: many lawyers walked 10 km — so even non-violent protests affect everyone's rights.

If 50 lakh people are coming, the State lacks that much force; it will detain 25,000 here and 25,000 there and not let 5 lakh gather, 'otherwise it goes out of control — then it becomes Bangladesh'.

'Indefinite' in Amit Sahni must be identified: 15 days? 10 days? 1–2 hours? He thinks roads should be kept free for 1–2 hours when school children travel; protest can happen in between — 'protests are symbolic; a protest is not a coup, it tells you we are unhappy. Bas.'

He repeatedly said 'read the case', 'I am only telling the case'.

Examples the professor used (facts checked)

Event	Facts	Professor's question
Ramlila Maidan, 2011	Midnight police action on 4/5 June 2011 on supporters of Baba Ramdev, who was on a fast. **One** person died: Rajbala (51), injured on the night and died in hospital on 26 September 2011. It is widely reported that Ramdev left the venue dressed in a woman's salwar-kameez. Supreme Court judgment: 23 Feb 2012.	How many died? → **one**.
Multai (Madhya Pradesh), 1998	Police firing on protesting farmers at Multai, Betul district, 12 January 1998; **24 farmers killed**; Digvijaya Singh was Chief Minister (1993–2003).	How many farmers? → **24** (the student's answer was right). Who was CM? → **Digvijaya Singh**.
Ayodhya, 1990	Police firing on kar sevaks on 30 Oct and 2 Nov 1990 while Mulayam Singh Yadav was UP Chief Minister; the **official toll was 16** (other estimates are higher). Separately, L.K. Advani's rath yatra was stopped and he was arrested at Samastipur, Bihar, on 23 Oct 1990 on the orders of the Bihar government under Lalu Prasad Yadav.	How many died? → **16** (official figure).

8 Association — 19(1)(c), 19(4)

Core points

- Everyone has the right to form associations, unions and co-operative societies; **blanket bans are not allowed**, but you cannot form a society that is harmful (public order, morality, sovereignty and integrity).

Case	What it held / why it matters
Damyanti Naranga v. Union of India (1971)	The right to form an association includes the right to **continue** it and not to be forced to join another body — freedom of association has a negative side.
Zoroastrian Co-operative Housing Society v. District Registrar (2005)	Housing society formed by Parsis, with a bye-law that plots/membership could not go to non-Parsis, was **upheld**. The professor asked 'what is the ratio?' because a religion-based colony appears to clash with Art 14 policy. The explanation he arrived at: it is a **private society** — 'in private I can sell to whomever I want'. The case rests on the society's freedom to decide its own membership under Art 19(1)(c).

Accuracy check

- The professor said he had **not read the original judgment**, and the transcript cannot show whether this is the exact case he meant; the student's answer 'Parsi community' matches *Zoroastrian Co-operative Housing Society*. Read the original for the exact reasoning before using it in an answer.

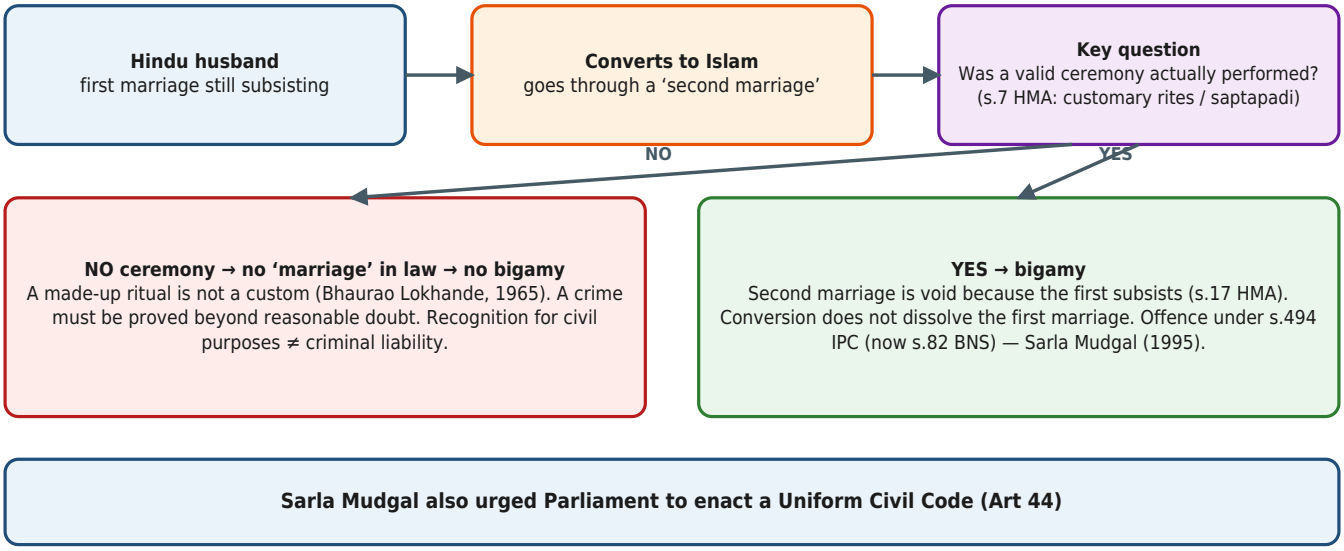
Professor's asides

'I have not read this original case — I confess. If you have not read something, confess before the children; it has not harmed me. Why do you lie in exams? Do you think we won't know? Even without reading, I can tell a justification is not justified.'

The private-autonomy analogy: 'Zoya has never invited me for tea' — Zoya: 'I am inviting you, come!' — 'We cannot file a case against her; in her private home she can invite whomever she wants.' Cue for the whole class to get ice-cream at the (now open) canteen.

9 Tangent: conversion, second marriage and bigamy (Sarla Mudgal)

Reasoning chain (flowchart)



Sarla Mudgal v. Union of India (1995)

- Hindu husbands, with wives living, **converted to Islam** and married again. Held: conversion does **not** dissolve the first Hindu marriage; the second marriage is void and the husband is guilty of **bigamy under s.494 IPC** (now BNS s.82). The Court urged a **Uniform Civil Code** (Art 44).
- **Hindu marriage procedure (s.7 HMA 1955):** solemnised according to the customary rites and ceremonies of **either** party; where saptapadi is part of the rites, the marriage is complete on the seventh step. Examples named: saptapadi, garlands, even a tribal custom of striking with a stick.
- **Professor's point in class:** 'Chand, sitaron aur taaron ko saakshi maan kar …' is a new ritual that is not a custom, so no valid marriage was proved and the man was not jailed; the marriage was accepted for civil purposes but not criminal ones, since criminal law needs proof beyond reasonable doubt.

Accuracy check

- The 'moon-and-stars' ceremony case described is **not Sarla Mudgal**, in which the second marriage and bigamy conviction were upheld; the transcript's 'Dr Mukherji' case cannot be identified for certain. The principle he explains — a bigamy charge needs a second marriage **solemnised with the essential ceremonies** — comes from *Bhaurao Shankar Lokhande v. State of Maharashtra* (1965).
- Correct the quick reasoning: a second marriage that is void **only because the first is subsisting** is exactly what s.494 punishes. The real question is whether any *marriage* was solemnised at all. If no ceremony, no offence.

Illustration used: Chander Mohan and Anuradha Bali ('Fiza')

Facts (from news reports)

- In December 2008, Haryana's then **Deputy Chief Minister Chander Mohan** (elder son of former CM Bhajan Lal) and lawyer **Anuradha Bali** (Haryana's assistant/additional advocate general) converted and married, taking the names Chand Mohammad and Fiza. The marriage lasted about 40 days; he left in January 2009, lost his post in the Hooda (Congress) government, and later returned to his first family. She was found dead at her Mohali home on 6 August 2012; the death was first treated as suicide and police later described the circumstances as mysterious.
- Answers to the questions: Fiza = Anuradha Bali; the Deputy CM was Chander Mohan, 'Bhajan Lal's son'; the government of the time was Congress (the class answered 'Congress').

Professor's asides

He praised the two family-law teachers (the students named Preeti and Ashwini) and said 'it is your fault if you did not read it'. He urged students to read original judgments, said 'Google the facts of Sarla Mudgal', and pressed a student to say 'look at me and tell'.

He also gave his personal suspicion about how the young lawyer died and said he cannot say it officially because the police investigation says otherwise; this is his opinion, with no court finding behind it (none found in the sources checked), and is not recorded as fact. Earlier he joked that students are in the 'blind age' ('pyaar andha hota hai').

He used BIMARU to criticise past governments in MP; ***BIMARU*** *stands for* ***Bihar, Madhya Pradesh, Rajasthan, Uttar Pradesh*** *(the professor listed three) and the label was coined by demographer Ashish Bose in the mid-1980s, i.e. before the 1993–2003 period he cited.*

Celebrity banter: he asked who actor-cricketer Azharuddin married; the students answered 'Sangeeta Bijlani, Mamta Kulkarni' — Sangeeta Bijlani is correct (married 1996, divorced 2010); Mamta Kulkarni was not his wife. For 'Karisma Kapoor' the husband was Sunjay Kapur (married 2003, divorced 2016).

Off-topic stories (a hostel anecdote about senior–junior relationships, personal remarks about Delhi jobs) and political jibes are summarised or left out; none is legally relevant.

10 Questions asked in class — answered

#	Question	Answer
1	Which company generates nuclear power? (Students: MSEB, SAIL, NTPC…)	**NPCIL — Nuclear Power Corporation of India Ltd** (under the Department of Atomic Energy; e.g. Tarapur). MSEB = state electricity board; SAIL = steel; NTPC = thermal power (the student was right that NTPC is thermal, not nuclear). Since the SHANTI Act 2025, private operation of nuclear plants is allowed under licence.
2	Read Article 39(b).	**39(b):** 'the ownership and control of the material resources of the community are so distributed as best to subserve the common good.' **39(c):** the economic system must not result in concentration of wealth and means of production to the common detriment.
3	Who is the Mumbai underworld don now in Pakistan?	**Dawood Ibrahim** (widely reported to be based in Pakistan, which denies it). Relevance: criminalisation of politics → ADR's right to know.
4	Who is the Chief Minister of Bihar now?	**Samrat Choudhary** (BJP), sworn in on 15 April 2026 as Bihar's 24th CM and its first BJP CM, after Nitish Kumar resigned following his election to the Rajya Sabha.
5	What are the facts of Sarla Mudgal?	Hindu husbands converted to Islam to marry again without dissolving the first marriage; the Court held the second marriage void and the husbands liable for bigamy; it urged a UCC (see Part 9).
6	Why was he not jailed, though the marriage was accepted in civil law?	Professor: no valid ceremony → no valid marriage proved → no bigamy; criminal liability needs proof beyond reasonable doubt. The student's answer ('the second marriage was invalid because the first was not renounced') is only half right — see the accuracy check in Part 9.
7	What is the procedure of Hindu marriage? (Jahnvi)	Rites and ceremonies — customary rites of **either** side (Punjabi, Tamil, tribal customs etc.); saptapadi where applicable (s.7 HMA).
8	Which Deputy CM changed his name, and what name did his wife take? Which party's government?	**Chander Mohan** became 'Chand Mohammad'; **Anuradha Bali** became '**Fiza**'. The Deputy CM was in Haryana's Congress government (Hooda); the class answered 'Congress'.
9	How many people died at Ramlila Maidan (2011)?	**One** — Rajbala (died 26 Sept 2011 of injuries). Ramdev escaped in women's clothes (widely reported).
10	How many farmers were shot dead; who was the CM?	**24** farmers (Multai, 1998); **Digvijaya Singh** (CM of Madhya Pradesh).
11	How many died in the Ayodhya firings (1990)?	**16** (official figure); CM Mulayam Singh Yadav.
12	Which case — the Parsi land case? What is its ratio?	**Zoroastrian Co-operative Housing Society v. District Registrar** (2005): a community-based society may limit its membership/plots to its own community under Art 19(1)(c); 'private society' reasoning (see Part 8).
13	What does 'indefinite' mean in *Amit Sahni* — 15 days, 10 days, 1–2 hours?	The Court did **not** fix a number; it held only that public roads cannot be occupied indefinitely. 1–2 hours is the **professor's** own view.
14	Who did Azharuddin marry? (Sangeeta Bijlani, Mamta Kulkarni?)	**Sangeeta Bijlani** (1996–2010). Mamta Kulkarni was not his wife.
15	BIMARU — what does it stand for?	**Bihar, Madhya Pradesh, Rajasthan, Uttar Pradesh** (the lecture named only three).

11 Corrections and updates in one place

Topic	Said in the lecture	Accurate / current position
Art 19(1)(b) grounds	'Only three grounds'	**Two** — sovereignty and integrity; public order.
Nuclear power	Not given to any private company	**Changed** by the SHANTI Act 2025: licensed private participation allowed.
Metro / thermal	Government monopoly	Not legal monopolies — private and PPP operators exist.
Art 300A	Law + public purpose + compensation	Text requires only authority of law; the rest comes from case law and statutes (K.T. Plantation, 2011; RFCTLARR Act 2013).
Rangarajan	'Approximate connection'	**Proximate**, direct connection with public order.
Indian Express case	'Faced in 1990'	Decided in **1985**.
Maneka Gandhi	Act not unconstitutional because of who she was	The Act was upheld; the Court required fair procedure — the remark is an opinion.
'Moon-and-stars' marriage case	Treated as Sarla Mudgal	Sarla Mudgal upheld bigamy liability; ceremony principle is Bhaurao Lokhande (1965).
Anuradha Bali	Described as an Advocate General (and 'Deputy IG')	Assistant/additional advocate general of Haryana; found dead in Aug 2012; first treated as suicide, later called 'mysterious' by police; no court finding on the cause was located.
BIMARU	Three States; blamed on 15 years' rule	Four States; term coined in the mid-1980s.
Inner Line Permit	Examples with 'probably'	Arunachal, Mizoram, Nagaland and (since 2019) Manipur.

Assigned and flagged reading

- **Compulsory:** Anuradha Bhasin (doctrine of proportionality); Ramlila Maidan Incident (read this case).
- **Read the originals:** Cricket Association of Bengal ('important'); R. Rajagopal ('very interesting'); Sarla Mudgal; the Parsi land case; Kharak Singh ('big, important'); Satwant Singh; Pradeep Jain; Dastane v. Dastane (assigned by a faculty member after class — a family-law case on cruelty).
- **Likely exam material:** Shreya Singhal; Devidas Ramachandra Tuljapurkar; Subramanian Swamy; Kaushal Kishor.
- **Next class:** Maneka Gandhi under Art 21, and the rest of the movement cases ('Kal dekhenge').
- **Pace:** the professor said he is touching and going with each Article because students already read ahead.